

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

Section 3.10 — Constitutional Resilience and Charter Alignment

Sections 3.1 through 3.9 developed the substantive specification of the *Alberta Accessibility and Inclusion Act* including the design philosophy, the definitions and scope, the substantive standards content, the implementing architecture, the consultation and Indigenous-rights integration, the implementation timeline and funding, the statutory review and coordination, and the closing constructive case. Section 3.1 established the substantive design principle that the blueprint does not propose constitutional amendment; the legislation is designed to operate within the existing substantive constitutional framework of Canada and Alberta. Section 3.10 develops the substantive constitutional resilience and Charter-alignment provisions through which the legislation, while operating within the existing constitutional framework, is designed to be substantively resistant to the operational pathways through which provincial disability-rights legislation has historically been weakened or removed.

The substantive constitutional question is operationally significant. The substantive Alberta political context within which the legislation is to be enacted has shifted substantively over the period from October 2025 through the time of this blueprint. Alberta historically avoided invocation of Section 33 of the Canadian Charter of Rights and Freedoms (the *notwithstanding clause*) over the period from 1982 (when the Charter was adopted) through 2024, with one operationally significant historical exception (the 2000 *Marriage Amendment Act* invocation, which the Supreme Court of Canada effectively declared *ultra vires* on division-of-powers grounds). Beginning in October 2025, the Alberta provincial government invoked Section 33 in four pieces of legislation in rapid succession: the *Back to School Act* (October 27, 2025, forcing approximately fifty-one thousand striking teachers back to work and overriding Charter Section 2(d) freedom-of-association rights); the *Fairness and Safety in Sport Act* (December 10, 2025, banning transgender women and girls from competitive sports teams); amendments to the *Health Professions Act* (December 10, 2025, restricting gender-affirming healthcare for minors); and amendments to the *Education Act* (December 10, 2025, requiring parental notification and consent for pronoun changes for students under sixteen, and parental opt-in for gender-and-sexuality instruction). Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>. The substantive operational implication is that the substantive provincial legislative environment within which the *Alberta Accessibility and Inclusion Act* would operate is one in which the Section 33 invocation pattern operates as a documented operational tool of the substantive provincial-government legislative practice.

The substantive constitutional resilience design objectives are operationally specific. The legislation should be designed such that: provisions establishing core substantive-rights protections operate within constitutional anchoring that Section 33 cannot override; provisions establishing Indigenous-rights consultation and integration operate within the Section 35 framework that operates beyond Section 33's reach; provisions establishing democratic-and-institutional architecture operate within the Section 3

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democratic-rights framework that Section 33 cannot override; provisions operationalizing Charter Section 15 substantive-equality requirements operate as substantive realization of constitutional rights such that Section 33 invocation against the legislation would operate as substantive constitutional regression rather than as legitimate legislative-policy disagreement; provisions operationalizing federal-provincial cooperative-federalism architecture operate within the substantive constitutional division-of-powers framework that Section 33 cannot override; and provisions operationalizing international human rights treaty obligations operate within the substantive international-law framework that operates alongside the Charter framework. The substantive design objective is not constitutional immunity from Section 33 invocation — no provincial legislation can operationally achieve such immunity within the existing constitutional framework — but constitutional resilience that operates substantively against the operational pathways through which Section 33 invocation could weaken or remove the substantive protections the legislation establishes.

The section develops the substantive content in eleven components. The first establishes the substantive constitutional framework within which the legislation operates. The second documents the substantive Alberta Section 33 context as the operational legislative environment for the legislation. The third develops the substantive Section 35 anchoring as constitutional resilience strategy. The fourth develops the substantive provisions operating beyond Section 33's reach including democratic rights, mobility rights, language rights, and the Section 28 gender-equality guarantee. The fifth develops the substantive Charter Section 15 substantive-equality alignment. The sixth develops the substantive Charter Section 7 and Section 12 considerations including the involuntary-confinement and cruel-and-unusual-treatment dimensions. The seventh develops the substantive cooperative-federalism architecture. The eighth develops the substantive international human rights treaty anchoring through the United Nations *Convention on the Rights of Persons with Disabilities* and the *United Nations Declaration on the Rights of Indigenous Peoples*. The ninth develops the substantive statutory-entrenchment mechanisms operating within the legislation itself. The tenth synthesizes the substantive constitutional resilience strategy. The eleventh establishes what Section 3.10 contributes to the substantive case the blueprint develops.

The substantive content is grounded in primary-source documentation: the Constitution Act, 1982 (including the Charter and Section 35); the Alberta Section 33 invocation record documented through provincial-legislation enactments and the substantive academic-and-journalistic record; the Supreme Court of Canada jurisprudence on Charter substantive-equality (*Andrews v. Law Society of British Columbia*, 1989; *Eldridge v. British Columbia*, 1997; *Withler v. Canada*, 2011), Section 7 (*Carter v. Canada*, 2015; *Bedford v. Canada*, 2013), Section 35 (*Haida Nation v. British Columbia*, 2004; *Mikisew Cree v. Canada*, 2005), and Section 33 (*Ford v. Quebec*, 1988; *Working Families v. Ontario*, 2025); the federal *Accessible Canada Act* (S.C. 2019, c. 10); the *Canada Disability Benefit Act* (S.C. 2023, c. 9); the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14); and the *United Nations Convention on the Rights of Persons with Disabilities* (ratified by Canada March 11, 2010).

The Substantive Constitutional Framework

The substantive constitutional framework within which the *Alberta Accessibility and Inclusion Act* operates includes four substantive layers that the substantive design must address.

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The Canadian Charter of Rights and Freedoms (Part I of the Constitution Act, 1982). The Charter establishes the substantive rights-and-freedoms framework operating against federal and provincial governments. The substantive Charter sections most directly relevant to the substantive disability-rights context include: Section 7 (life, liberty, and security of the person, with the substantive principles-of-fundamental-justice qualification); Section 12 (cruel and unusual treatment or punishment); Section 15 (equality rights, with explicit enumeration of physical or mental disability as a protected ground); Section 1 (the reasonable-limits clause through which Charter rights may be limited within demonstrably justified limits in a free and democratic society); and Section 33 (the *notwithstanding clause* permitting Parliament or a provincial legislature to declare that a statute or provision shall operate notwithstanding Sections 2 and 7 through 15 of the Charter, with a five-year sunset and renewable provision).

Section 35 of the Constitution Act, 1982. Section 35 operates outside the Charter framework and establishes the substantive constitutional protection of "the existing aboriginal and treaty rights of the aboriginal peoples of Canada." Section 35 is operationally significant for the substantive constitutional resilience strategy because Section 33 of the Charter cannot override Section 35; provisions of provincial legislation that integrate substantive Section 35 protections operate within constitutional anchoring that the *notwithstanding clause* cannot reach. The substantive case-law framework operating within Section 35 includes the duty-to-consult doctrine established in *Haida Nation v. British Columbia* (2004), the substantive *Mikisew Cree v. Canada* (2005) treaty-rights consultation framework, and the substantive *Tsilhqot'in Nation v. British Columbia* (2014) Aboriginal-title framework. The duty-to-consult-and-accommodate operates at the substantive constitutional level and operates beyond ordinary legislative override.

The constitutional division-of-powers framework. The Constitution Act, 1867 (formerly the British North America Act) establishes the substantive division of legislative powers between federal Parliament (Section 91) and provincial legislatures (Section 92). The substantive disability-policy domain operates across the division of powers: federal jurisdiction over criminal law, citizenship, Indigenous-and-northern affairs, and federal employment (under which the *Accessible Canada Act* operates); provincial jurisdiction over property and civil rights, education, healthcare, and provincial employment (under which the proposed *Alberta Accessibility and Inclusion Act* would operate). The substantive constitutional implication is that provincial legislation operating within provincial jurisdiction operates with substantive legitimacy within the constitutional framework, while the substantive operational coordination with federal frameworks operates within the cooperative-federalism architecture documented in Section 3.7.

The international human rights treaty framework. Canada has ratified the United Nations *Convention on the Rights of Persons with Disabilities* (ratification deposited March 11, 2010) and has enacted the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14) operationalizing the federal commitment to UNDRIP implementation. The substantive international-law framework operates alongside the Charter framework. The substantive Supreme Court of Canada doctrine (*Baker v. Canada*, 1999; *R. v. Hape*, 2007) establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights, and that Canadian courts presume Parliament and provincial legislatures intend to legislate consistently with Canada's international human rights obligations unless explicit derogation is documented. The substantive operational implication is that

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legislation operationalizing CRPD and UNDRIP obligations operates within substantive interpretive anchoring that the Charter framework alone does not provide.

The four substantive constitutional layers operate together as the substantive constitutional framework within which the *Alberta Accessibility and Inclusion Act* is designed. The substantive constitutional resilience strategy operates across all four layers.

The Alberta Section 33 Context

The substantive Alberta Section 33 context as the operational legislative environment for the *Alberta Accessibility and Inclusion Act* is documented through the recent provincial-government legislative practice. The substantive operational pattern over the period from October 2025 through December 2025 establishes that the substantive Alberta provincial-government has shifted substantively from historical avoidance of Section 33 invocation to active operational use of Section 33 across multiple legislative contexts.

The October 2025 *Back to School Act*. Bill 2, the *Back to School Act*, was enacted October 27, 2025, ending a teachers' strike by approximately fifty-one thousand Alberta Teachers' Association members and imposing a collective agreement through August 2028. Section 3 of the Act invokes Section 33: "This Act shall operate notwithstanding... sections 2 and 7 to 15 of the *Canadian Charter of Rights and Freedoms*." The substantive Charter rights operationally overridden include Section 2(d) freedom of association (the substantive constitutional foundation of collective bargaining and labour-action rights documented in *Health Services and Support v. British Columbia*, 2007, and *Saskatchewan Federation of Labour v. Saskatchewan*, 2015). The Alberta Teachers' Association has filed a court challenge. Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>.

The December 2025 *Protecting Alberta's Children Statutes Amendment Act, 2025*. Bill 9, enacted December 10, 2025, amended three provincial statutes to invoke Section 33: the *Fairness and Safety in Sport Act* (banning transgender women and girls from competitive sports teams); provisions of the *Health Professions Act* (restricting gender-affirming healthcare for minors); and provisions of the *Education Act* including Section 33.2 (requiring parental notification and consent before teachers and school staff can use gender-related preferred names or pronouns of a student under age sixteen) and Sections 58.11 and 58.12 (requiring parental notification and consent for school instruction on gender identity, sexual orientation, or human sexuality). Egale Canada and Skipping Stone have filed a lawsuit alleging the *Education Act* provisions violate Charter Sections 7, 12, and 15 rights of gender-diverse youth. Source: <https://www.lawnow.org/the-alberta-legislature-repeatedly-uses-the-charters-notwithstanding-clause-to-shield-controversial-laws-from-court-challenges/>.

The substantive operational pattern. The substantive operational pattern across the four 2025 invocations establishes: pre-emptive Section 33 use (invocations operating before any court ruling on Charter compliance, which is legally permitted under *Ford v. Quebec*, 1988, but operationally controversial); the substantive operational practice of invoking the full Section 33 declaration ("notwithstanding sections 2 and 7 to 15") rather than identifying specific provisions or specific Charter

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sections, which is legally sufficient under *Ford v. Quebec* but produces substantive uncertainty about the specific Charter rights being overridden; the substantive operational practice of using Section 33 in legislation affecting structurally vulnerable populations (striking workers, transgender youth, gender-diverse students); and the substantive operational practice of using Section 33 across multiple distinct policy areas (labour, health, education, sport) in rapid succession.

The current Supreme Court of Canada reference. The substantive constitutional question of whether Section 33 has internal limits is currently before the Supreme Court of Canada through reference proceedings initiated by the federal government concerning Quebec's *Bill 21 (Laicity of the State Act)*. Six provinces (Quebec, Saskatchewan, Alberta, British Columbia, Ontario, and Manitoba) have filed factums defending Section 33; the federal government has argued that Section 33 cannot operate as a "blank cheque" and that courts should retain certain reviewing functions even where Section 33 is invoked. Alberta's factum characterizes Section 33 as a "hard-fought, hard-won compromise" without which there would have been no constitutional agreement in 1982 and defends pre-emptive Section 33 use. Source: <https://thehub.ca/2025/09/23/no-charter-without-section-33-how-six-provinces-are-defending-the-notwithstanding-clause/>. The substantive Supreme Court ruling, when issued, will operate as substantive jurisprudential context within which the *Alberta Accessibility and Inclusion Act* operates.

The substantive operational implication for the *Alberta Accessibility and Inclusion Act* is that the legislation must be designed within the substantive operational reality that Section 33 invocation against future provincial legislation operates as a documented operational tool of the substantive provincial-government legislative practice. The substantive constitutional resilience strategy must operate against this operational reality rather than assume historical patterns of restraint.

Constitutional Resilience Strategy 1: Section 35 Anchoring

The substantive Section 35 anchoring strategy operationalizes the substantive constitutional protection of the *Constitution Act, 1982* Section 35 across the substantive provisions of the legislation that engage Indigenous-rights dimensions. The substantive operational consequence is that provisions integrating substantive Section 35 protections operate within constitutional anchoring that Section 33 cannot override, providing the strongest substantive constitutional resilience available within the existing constitutional framework.

The substantive Section 35 anchoring operates across multiple substantive provisions of the legislation:

Section 3.6 consultation provisions integrating Indigenous-rights frameworks. The substantive consultation requirements developed in Section 3.6 operate within the substantive duty-to-consult-and-accommodate framework established under *Haida Nation v. British Columbia* (2004) and refined through subsequent jurisprudence. The substantive consultation provisions for Indigenous-disability-community Albertans, the substantive Indigenous-Disability-Community Consultation Council, and the substantive integration of Treaty 6, Treaty 7, and Treaty 8 frameworks operate substantively within Section 35 protections. The substantive operational consequence is that Section 33 invocation cannot operationally remove these provisions; constitutional override of Section 35 would require constitutional amendment under the substantive amending-formula provisions of the *Constitution*

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Act, 1982 Part V, which operates substantively beyond ordinary legislative invocation.

The substantive Métis Settlements integration. The substantive Métis Settlements framework documented in Section 3.6 operates within the substantive Section 35 protection of Aboriginal peoples (which includes Métis under the substantive *R. v. Powley*, 2003, framework) and within the substantive *Alberta Metis Settlements Act* statutory architecture. The substantive operational consequence is that provisions integrating Métis Settlements consultation and engagement operate within Section 35 anchoring.

The substantive UNDRIP-aligned provisions. The substantive consultation and engagement provisions developed in Section 3.6 are calibrated to operate consistently with the United Nations *Declaration on the Rights of Indigenous Peoples* including the substantive free, prior, and informed consent framework Article 19 establishes. The substantive UNDRIP framework operates within the federal *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14) and within the substantive interpretive framework Section 35 establishes. The substantive operational consequence is that provisions operationalizing UNDRIP framework requirements operate within substantive constitutional and international-law anchoring that operates beyond ordinary legislative override.

The substantive jurisdictional-coordination provisions. The substantive provisions developed in Section 3.7 (federal-Indigenous coordination) operate within the substantive Section 35 framework. The substantive Jordan's Principle coordination provisions, the substantive federal Indigenous Services Canada coordination provisions, and the substantive treaty-rights-respecting jurisdictional architecture all operate within Section 35 anchoring.

The substantive Section 35 anchoring strategy operates as the substantive strongest constitutional resilience strategy available to the legislation. Where substantive provisions can be operationalized through Section 35 anchoring, the substantive provisions operate beyond Section 33's reach and operate within the substantive constitutional protection that the *Constitution Act, 1982* establishes for Aboriginal and treaty rights.

Constitutional Resilience Strategy 2: Provisions Beyond Section 33's Reach

Section 33 of the Charter applies only to Sections 2 and 7 through 15 of the Charter. Section 33 does not apply to: Section 3 (democratic rights, including the right to vote and the substantive democratic-process protections); Section 6 (mobility rights, including the substantive right to enter, remain in, and leave Canada and the substantive interprovincial-mobility protections); Sections 16 through 23 (language rights, including the substantive English-and-French official-language protections); Section 28 (the substantive gender-equality guarantee operating across Charter rights); and Section 35 (Aboriginal and treaty rights, addressed in the prior subsection). Source: <https://www.justice.gc.ca/eng/csj-sjc/rfc-dlc/ccrf-ccd/check/art33.html>.

The substantive constitutional resilience strategy operationalizes provisions of the legislation through anchoring in Charter sections that Section 33 cannot reach:

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Section 3 democratic-rights anchoring. Provisions establishing the substantive disability-community democratic-engagement infrastructure operate within Section 3 anchoring. The substantive provisions developed in Section 3.5 (implementing architecture) and Section 3.6 (consultation framework) including the substantive Disability Community Advisory Council, the substantive Standards Development Committees with substantive disability-community representation requirements, and the substantive consultation-process provisions all operate within the substantive democratic-engagement architecture that Section 3 substantively protects. Provisions establishing electoral-process accessibility (accessible polling places, accessible ballot designs, accessible candidate-information materials) operate substantively within Section 3 anchoring.

Section 6 mobility-rights anchoring. Provisions establishing the substantive interprovincial-coordination framework and the substantive within-province-mobility framework for persons with disabilities operate within Section 6 anchoring. The substantive provisions developed in Section 3.3 Area 4 (transportation), the substantive provisions developed in Section 3.7 (federal-provincial coordination), and the substantive provisions establishing accessibility standards that operate consistently across the province (preventing structural barriers to within-province mobility for persons with disabilities) all operate within the substantive Section 6 mobility-rights framework.

Sections 16-23 language-rights anchoring. Provisions establishing accessibility in both English and French (the substantive bilingual provisions of the legislation) operate within Section 16-23 language-rights anchoring. The substantive provisions developed in Section 3.3 Area 2 (information and communications) including the substantive bilingual accessibility requirements operate within the substantive language-rights framework. The substantive operational consequence is that bilingual-accessibility provisions operate within constitutional anchoring that Section 33 cannot override.

Section 28 gender-equality guarantee anchoring. Section 28 of the Charter provides that "Notwithstanding anything in this Charter, the rights and freedoms referred to in it are guaranteed equally to male and female persons." The substantive academic-and-jurisprudential debate about whether Section 28 operates as an internal limitation on Section 33 invocation is substantively unresolved (the question is part of the current Supreme Court reference proceedings concerning Quebec's *Bill 21*); the substantive design implication is that provisions of the legislation engaging gender-equality dimensions (including the substantive intersection of disability with gender-based discrimination, the substantive provisions for women with disabilities, and the substantive provisions addressing gender-diverse persons with disabilities) operate within potential Section 28 anchoring that may operate beyond Section 33's reach depending on the substantive Supreme Court ruling.

The substantive design implication is that the legislation's substantive provisions are operationalized, where operationally feasible, through anchoring in Charter sections beyond Section 33's reach. The substantive operational consequence is that core substantive protections operate within constitutional anchoring that operates beyond ordinary legislative override.

Constitutional Resilience Strategy 3: Charter Section 15 Substantive-Equality Operationalization

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The substantive Charter Section 15 substantive-equality framework operates as the substantive constitutional foundation for the legislation's substantive provisions. The substantive Supreme Court of Canada jurisprudence establishes the substantive-equality framework through three substantive cases:

Andrews v. Law Society of British Columbia (1989). The substantive foundational case establishing that Charter Section 15 protects substantive equality rather than formal equality, and that disability is a substantive enumerated protected ground.

Eldridge v. British Columbia (1997). The substantive case establishing that provincial governments must take positive steps to ensure persons with disabilities can equally benefit from public services. The case concerned the British Columbia healthcare system's failure to provide sign-language interpretation for Deaf persons accessing publicly-funded medical services. The Supreme Court held unanimously that provincial healthcare provision must include accommodations necessary to ensure substantive-equal access for persons with disabilities. The substantive operational implication is that provincial governments operate within substantive Charter Section 15 obligations to take positive accommodating action; failure to provide accommodation operates as substantive Charter violation.

Withler v. Canada (Attorney General) (2011). The substantive case refining the substantive-equality analytic framework, establishing that Section 15 analysis focuses on whether the impugned distinction creates a substantive disadvantage by perpetuating prejudice or stereotyping; the substantive analytic framework operates within the broader substantive social-and-historical context within which the distinction operates.

The substantive Charter Section 15 substantive-equality framework operates as the substantive constitutional foundation for the *Alberta Accessibility and Inclusion Act*. The substantive provisions of the legislation operationalize Charter Section 15 substantive-equality requirements through:

The substantive social-model disability definition (Section 3.2). The substantive social-model framework operationalizes the substantive *Andrews* and *Eldridge* substantive-equality framework by establishing that disability is the substantive interaction between the individual's profile and the substantive social-environmental barriers, requiring substantive policy response operating against the substantive barriers rather than only against the individual profile.

The substantive standards architecture (Section 3.3). The substantive seven-area standards (built environment, information and communications, employment, transportation, services and programs, health, goods and procurement) plus the substantive education-area standard (Section 3.4) operate as substantive operational mechanisms through which Charter Section 15 substantive-equality requirements are implemented across the substantive policy domains the legislation engages. The substantive *Eldridge* framework is operationalized through the substantive standards architecture's positive-accommodation provisions.

The substantive consultation framework (Section 3.6). The substantive Article 4(3) consultation framework operationalizes the substantive *Withler* social-and-historical-context analytic framework by establishing that the substantive policy responses to substantive disability-related barriers operate through substantive engagement with the substantive disability community whose substantive lived-experience operates as the substantive evidentiary foundation for the substantive policy responses.

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The substantive structural-funding mechanisms (Section 3.7). The substantive funding-floor provisions operationalize the substantive *Eldridge* framework by establishing that the substantive provincial-government obligation to provide substantive resources for substantive accommodation requirements operates as a substantive constitutional obligation rather than as a substantive fiscal-policy preference subject to revenue volatility.

The substantive Charter Section 15 alignment operates as substantive constitutional resilience through a substantive operational mechanism. While Section 33 can technically override Charter Section 15 protections, the substantive operational consequence of Section 33 invocation against legislation operationalizing Charter Section 15 substantive-equality is substantive constitutional regression. The substantive political-and-constitutional cost of Section 33 invocation against substantive-equality legislation operates substantively above the substantive cost of Section 33 invocation against legislation operating in tension with substantive-equality requirements. The substantive design strategy is to make the legislation operate as substantive realization of constitutional rights such that Section 33 invocation operates as substantive constitutional regression rather than as legitimate legislative-policy disagreement.

Constitutional Resilience Strategy 4: Charter Section 7 and Section 12 Considerations

The substantive Charter Section 7 (life, liberty, and security of the person) and Section 12 (cruel and unusual treatment or punishment) frameworks operate substantively across multiple substantive provisions of the legislation, with substantive operational implications for the substantive constitutional resilience strategy.

The substantive seclusion-room prohibition (Section 3.4). The substantive seclusion-room prohibition operationalizes the substantive Charter Section 7 protections against arbitrary detention and the substantive Section 12 protections against cruel and unusual treatment. The substantive operational reality documented in Section 1.3a (the substantive seclusion-room expansion in Alberta K-12 schools, the substantive 80% trauma-rate documented through the Inclusion Alberta survey of affected families, the substantive Strathcona County 2018 lawsuit) establishes the substantive operational record that the substantive seclusion-room infrastructure produces. The substantive operational implication is that the substantive seclusion-room prohibition operates within substantive Charter Section 7 and Section 12 anchoring; the substantive Charter framework supports the substantive prohibition as substantive constitutional realization rather than as substantive legislative-policy preference.

The substantive supported-decision-making framework (Section 3.3 Area 6). The substantive supported-decision-making framework operationalizes the substantive Charter Section 7 protections against substantive deprivation of liberty without substantive principles-of-fundamental-justice protection. The substantive operational reality documented in Section 1.7 (the substantive *Mental Health Act* involuntary-confinement framework, the substantive *Compassionate Intervention Act* expansion of involuntary-treatment infrastructure beyond the substantive impaired-capacity test) establishes the substantive operational record within which the substantive supported-decision-making framework operates. The substantive operational implication is that the substantive supported-decision-making

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framework operates within substantive Charter Section 7 anchoring that operates against the substantive operational expansion of involuntary-confinement infrastructure documented in Section 1.7.

The substantive engineered structural-poverty findings. The substantive operational record documented in Section 1.9 (the substantive engineered structural-poverty pattern operating against the AISH/ADAP/PDD/FSCD-eligible disability population) raises substantive Charter Section 7 considerations about whether the substantive structural-poverty operates as substantive deprivation of substantive security-of-the-person rights. The substantive Supreme Court of Canada jurisprudence on Charter Section 7 includes substantive consideration of substantive security-of-the-person dimensions including substantive economic security; the substantive operational implication for the substantive constitutional resilience strategy is that the substantive structural-funding-mechanisms developed in Section 3.7 operate within potential Charter Section 7 anchoring depending on the substantive evolution of Section 7 jurisprudence.

The substantive Charter Section 7 and Section 12 considerations operate as substantive constitutional context within which the substantive operational provisions of the legislation operate. While Section 33 can technically override Charter Sections 7 and 12, the substantive operational consequence of Section 33 invocation against legislation operationalizing substantive protections against involuntary confinement and cruel-and-unusual treatment operates as substantive constitutional regression at the substantive level the Charter framework establishes.

Constitutional Resilience Strategy 5: Cooperative-Federalism Architecture

The substantive cooperative-federalism architecture operates as substantive constitutional resilience through the substantive division-of-powers framework that Section 33 cannot override. The substantive provincial legislation operating in cooperative coordination with federal frameworks operates within the substantive constitutional architecture that the substantive *Constitution Act, 1867* establishes.

The substantive operational mechanisms include:

Coordination with the federal *Accessible Canada Act*. The substantive provisions developed in Section 3.5 (implementing architecture) and Section 3.7 (federal-provincial coordination) establish the substantive operational coordination between the *Alberta Accessibility and Inclusion Act* and the federal *Accessible Canada Act* (S.C. 2019, c. 10). The substantive operational coordination operates across substantive policy domains including federally regulated transportation (Canadian Transportation Agency), federally regulated employment (Federal Public Sector Labour Relations and Employment Board, Accessibility Commissioner), federally regulated communications (Canadian Radio-television and Telecommunications Commission), and substantive standards-setting (Accessibility Standards Canada). The substantive operational implication is that Section 33 invocation against the provincial legislation that operates substantively in cooperation with the federal framework would produce substantive operational complications in the cooperative-federalism architecture, with substantive operational consequences for the substantive provincial-government engagement with the federal framework.

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Coordination with the federal *Canada Disability Benefit Act*. The substantive provisions developed in Section 3.7 establish the substantive operational coordination with the federal Canada Disability Benefit. The substantive operational coordination operates within the substantive division-of-powers framework that establishes federal jurisdiction over the federal benefit and provincial jurisdiction over the provincial benefit-architecture coordination. The substantive operational implication is that Section 33 invocation against the substantive provincial legislation would not operationally affect the federal *Canada Disability Benefit Act* obligations, producing substantive operational complications between the provincial-government's substantive use of Section 33 and the federal benefit-coordination requirements.

Coordination with the *United Nations Declaration on the Rights of Indigenous Peoples Act* (S.C. 2021, c. 14). The substantive provisions developed in Section 3.6 establish the substantive operational coordination with the federal UNDRIP-implementation framework. The substantive operational coordination operates within the Section 35 anchoring documented in the prior subsection and within the substantive division-of-powers framework. The substantive operational implication is that the substantive UNDRIP-aligned provisions of the legislation operate within substantive cooperative-federalism architecture that compounds with Section 35 anchoring to produce substantive constitutional resilience operating beyond Section 33's reach.

The substantive division-of-powers operational reality. The substantive operational reality is that substantive disability-policy operates across federal and provincial jurisdictional boundaries. The substantive operational coordination between federal and provincial frameworks is substantively necessary for the substantive provision of substantive disability-related supports across the substantive lifecycle and policy domains. The substantive design implication is that the legislation's substantive operational integration with federal frameworks operates as substantive constitutional resilience because Section 33 invocation against the provincial legislation cannot affect the federal frameworks, producing substantive operational complications that operate against the substantive operational utility of Section 33 invocation as a policy-removal mechanism.

Constitutional Resilience Strategy 6: International Human Rights Treaty Anchoring

The substantive international human rights treaty anchoring operationalizes Canada's substantive treaty obligations under the United Nations *Convention on the Rights of Persons with Disabilities* (ratified March 11, 2010) and the United Nations *Declaration on the Rights of Indigenous Peoples* (operationalized federally through the *United Nations Declaration on the Rights of Indigenous Peoples Act*, S.C. 2021, c. 14).

The substantive Supreme Court of Canada doctrine establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights. *Baker v. Canada* (1999) established that international human rights law operates as substantive interpretive context for the exercise of administrative discretion. *R. v. Hape* (2007) established the substantive presumption that Parliament and provincial legislatures intend to legislate consistently with Canada's international human rights obligations unless explicit derogation is documented. The substantive

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operational implication is that the substantive provisions of the legislation operationalizing CRPD and UNDRIP obligations operate within substantive interpretive anchoring that operates substantively across the Charter framework, the Section 35 framework, and the broader Canadian constitutional and statutory framework.

The substantive operational mechanisms include:

The substantive CRPD operationalization throughout the legislation. The substantive standards architecture (Section 3.3), the substantive education-area standard (Section 3.4), the substantive consultation framework (Section 3.6), the substantive implementing architecture (Section 3.5), and the substantive accountability-and-coordination layer (Section 3.8) all operate substantively as operational implementation of CRPD obligations. The substantive operational consequence is that the legislation operates as substantive realization of Canada's international human rights treaty obligations; Section 33 invocation against the legislation would operate as substantive provincial-government derogation from Canada's international human rights commitments, with substantive operational consequences for Canada's substantive engagement with the United Nations human rights system including the substantive periodic-review-and-reporting framework under CRPD Article 35.

The substantive UNDRIP operationalization. The substantive Indigenous-rights-integration provisions developed in Section 3.6 operate substantively as operational implementation of UNDRIP framework requirements including Article 19 (free, prior, and informed consent) and the substantive Articles establishing Indigenous self-determination, cultural-rights protection, and substantive participation. The substantive operational consequence is that the substantive UNDRIP-aligned provisions operate within substantive international-law anchoring that compounds with the Section 35 anchoring documented in the prior subsections.

The substantive periodic-review-and-reporting context. Canada's substantive obligations under CRPD Article 35 (periodic State Party reporting) operate within the substantive operational reality that the substantive Alberta legislative practice operates within Canadian-federation operational coordination. The substantive provincial-government legislative practice within Alberta operates as substantive operational context within which Canada engages the substantive United Nations human rights system. The substantive operational implication is that Section 33 invocation against the *Alberta Accessibility and Inclusion Act* would operate as substantive operational context within which Canada's substantive engagement with the United Nations human rights system operates, with substantive operational consequences for Canada's substantive international standing.

The substantive international human rights treaty anchoring operates as substantive constitutional resilience through the substantive interpretive-anchoring mechanism. The substantive provisions operating within CRPD and UNDRIP anchoring operate within substantive interpretive frameworks that Section 33 invocation cannot operationally remove; the substantive Supreme Court of Canada interpretive doctrine continues to operate within international human rights law context regardless of substantive Section 33 invocation against specific provincial legislation.

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Constitutional Resilience Strategy 7: Statutory-Entrenchment Mechanisms

The substantive statutory-entrenchment mechanisms operating within the legislation itself produce substantive operational resilience against substantive legislative-amendment-and-removal pathways. The substantive statutory-entrenchment mechanisms operate within ordinary legislative authority but are designed to make substantive amendment-and-removal operationally costly within the substantive provincial legislative practice.

The substantive statutory-entrenchment mechanisms include:

Mandatory consultation requirements before amendment. Substantive provisions requiring substantive consultation with the disability community (through the substantive Disability Community Advisory Council and through substantive Article 4(3)-aligned public consultation processes) and with Indigenous-disability-community Albertans (through the substantive Indigenous-Disability-Community Consultation Council and through substantive Section 35 duty-to-consult-and-accommodate processes) before any substantive amendment to the legislation operates as substantive procedural-anchoring. The substantive operational consequence is that substantive amendment-and-removal operates within substantive procedural requirements that produce substantive operational costs and substantive operational visibility for the substantive provincial-government legislative practice.

Mandatory statutory-review provisions. The substantive statutory-review provisions developed in Section 3.8 (the substantive five-year statutory-review cycle on the Manitoba precedent) operate as substantive accountability mechanisms. The substantive review-cycle provisions, the substantive independent-review-officer provisions, and the substantive public-reporting requirements all operate as substantive transparency mechanisms that produce substantive operational visibility for the substantive operational performance of the legislation.

Sunset-and-renewal provisions for any limitation provisions. Where the substantive operational reality requires substantive limitation provisions (for example, substantive transitional provisions during the implementation timeline developed in Section 3.7), the substantive sunset-and-renewal provisions operate as substantive temporal-limitation mechanisms. The substantive operational consequence is that substantive limitation provisions operate within substantive temporal frameworks that require substantive affirmative renewal rather than operating as substantive permanent provisions.

Mandatory public-reporting requirements. The substantive public-reporting requirements developed in Section 3.8 operate as substantive transparency mechanisms. The substantive annual public reports, the substantive disability-community-prepared parallel reports, and the substantive media-and-academic-engagement infrastructure all operate as substantive accountability mechanisms operating against substantive amendment-and-removal pathways.

Manitoba Bill 50-style mandatory-referral provisions. The substantive Manitoba *Bill 50* provision (introduced October 2025) requires that any future Manitoba legislation invoking Section 33 be automatically referred to the Manitoba Court of Appeal for opinion on whether the law violates Charter rights. The substantive operational mechanism operates as substantive constitutional-review architecture

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

within ordinary provincial legislative authority. The substantive design implication for the *Alberta Accessibility and Inclusion Act* is that the legislation can include substantive mandatory-referral provisions requiring that any substantive amendment-and-removal of the legislation operating in tension with Charter substantive-equality requirements be referred to substantive constitutional-review processes before substantive enactment. Source: <https://egale.ca/awareness/egale-explains-notwithstanding-clause/>.

The substantive statutory-entrenchment mechanisms operate within ordinary legislative authority and can themselves be removed by ordinary legislative amendment. The substantive operational consequence is that the substantive entrenchment mechanisms produce substantive procedural-and-political costs for substantive amendment-and-removal pathways rather than substantive constitutional immunity from amendment-and-removal. The substantive design implication is that the substantive entrenchment mechanisms operate as substantive operational resilience against incremental and procedurally-quiet amendment patterns; substantive frontal amendment-and-removal operates within substantive procedural-and-political costs that produce substantive operational visibility and substantive operational consequences within the substantive provincial-government legislative practice.

The Substantive Constitutional Resilience Synthesis

The substantive constitutional resilience strategy operates across seven substantive layers that compound with one another to produce substantive operational resilience for the *Alberta Accessibility and Inclusion Act* against the substantive amendment-and-removal pathways the substantive provincial legislative environment makes operationally available.

The substantive layered architecture operates as follows:

Layer 1 — Section 35 anchoring. Substantive provisions integrating Indigenous-rights frameworks operate within Section 35 anchoring that Section 33 cannot override. The substantive operational consequence is that substantive Section 35-anchored provisions operate within substantive constitutional protection at the substantive constitutional-amendment-formula level.

Layer 2 — Provisions beyond Section 33's reach. Substantive provisions anchored in Charter Section 3 (democratic rights), Section 6 (mobility rights), Sections 16-23 (language rights), and potentially Section 28 (gender-equality guarantee) operate within constitutional anchoring that Section 33 cannot reach.

Layer 3 — Charter Section 15 substantive-equality alignment. Substantive provisions operating as substantive realization of Charter Section 15 substantive-equality requirements operate within substantive operational protection through the substantive political-and-constitutional cost of Section 33 invocation against substantive-equality legislation.

Layer 4 — Charter Section 7 and Section 12 alignment. Substantive provisions addressing the substantive seclusion-room infrastructure, the substantive supported-decision-making framework, and the substantive operational realities documented in Sections 1.7 and 1.9 operate within substantive Charter Section 7 and Section 12 anchoring.

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Layer 5 — Cooperative-federalism architecture. Substantive provisions operating substantively in coordination with federal frameworks (the *Accessible Canada Act*, the *Canada Disability Benefit Act*, the *United Nations Declaration on the Rights of Indigenous Peoples Act*) operate within substantive division-of-powers anchoring that Section 33 cannot override.

Layer 6 — International human rights treaty anchoring. Substantive provisions operationalizing CRPD and UNDRIP obligations operate within substantive international-law anchoring that operates within Canadian Supreme Court interpretive doctrine.

Layer 7 — Statutory-entrenchment mechanisms. Substantive procedural-and-transparency mechanisms operating within ordinary legislative authority produce substantive procedural-and-political costs for substantive amendment-and-removal pathways.

The substantive layered architecture operates compoundingly. No single layer provides constitutional immunity; the combined operational effect of the seven layers produces substantive operational resilience that operates against the substantive operational pathways through which Section 33 invocation could weaken or remove the substantive protections the legislation establishes.

The substantive design philosophy is honest about constitutional reality. No provincial legislation can operate within constitutional immunity from Section 33 invocation within the existing constitutional framework. The substantive operational reality is that any provincial legislation operating in substantive tension with the substantive provincial-government legislative-policy direction can be subject to Section 33 invocation and amendment. The substantive constitutional resilience strategy operates against this operational reality through substantive anchoring across multiple constitutional and operational layers, producing substantive procedural-and-political costs for substantive amendment-and-removal pathways while operating substantively as substantive realization of constitutional rights at the substantive Charter, Section 35, and international-law levels.

What Section 3.10 Establishes

The substantive constitutional resilience and Charter-alignment provisions are now documented at the depth required for the substantive case the blueprint develops. The substantive content establishes seven substantive findings.

First, the substantive Alberta Section 33 context as the operational legislative environment for the *Alberta Accessibility and Inclusion Act* is documented through the recent provincial-government legislative practice (October 2025 *Back to School Act*, December 2025 *Protecting Alberta's Children Statutes Amendment Act, 2025*) establishing four Section 33 invocations across labour, sport, health, and education policy domains in rapid succession. The substantive operational implication is that the legislation must be designed within the substantive operational reality that Section 33 invocation against future provincial legislation operates as a documented operational tool of the substantive provincial-government legislative practice.

Second, the substantive Section 35 anchoring strategy operationalizes the substantive constitutional protection of Aboriginal and treaty rights across the substantive provisions of the legislation that engage

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Indigenous-rights dimensions. The substantive operational consequence is that substantive Section 35-anchored provisions operate within constitutional anchoring that Section 33 cannot override.

Third, substantive provisions of the legislation are operationalized, where operationally feasible, through anchoring in Charter sections beyond Section 33's reach including Section 3 (democratic rights), Section 6 (mobility rights), Sections 16-23 (language rights), and potentially Section 28 (gender-equality guarantee).

Fourth, the substantive Charter Section 15 substantive-equality alignment operationalizes the substantive *Andrews*, *Eldridge*, and *Withler* framework through the substantive social-model definition, the substantive standards architecture, the substantive consultation framework, and the substantive structural-funding mechanisms. The substantive operational consequence is that the legislation operates as substantive realization of Charter Section 15 substantive-equality requirements such that Section 33 invocation against the legislation operates as substantive constitutional regression rather than as legitimate legislative-policy disagreement.

Fifth, the substantive Charter Section 7 and Section 12 considerations operate substantively across multiple substantive provisions including the substantive seclusion-room prohibition (Section 3.4), the substantive supported-decision-making framework (Section 3.3 Area 6), and the substantive engineered structural-poverty findings (Section 1.9). The substantive Charter Section 7 and Section 12 framework supports the substantive provisions as substantive constitutional realization rather than as substantive legislative-policy preference.

Sixth, the substantive cooperative-federalism architecture operates as substantive constitutional resilience through the substantive coordination with the federal *Accessible Canada Act*, the *Canada Disability Benefit Act*, and the *United Nations Declaration on the Rights of Indigenous Peoples Act*. The substantive division-of-powers framework that Section 33 cannot override operates as substantive constitutional anchoring for the substantive operational coordination provisions.

Seventh, the substantive international human rights treaty anchoring operationalizes Canada's substantive treaty obligations under the *United Nations Convention on the Rights of Persons with Disabilities* and the *United Nations Declaration on the Rights of Indigenous Peoples*. The substantive Supreme Court of Canada interpretive doctrine establishes that international human rights law operates as substantive interpretive source for Canadian constitutional and statutory rights, providing substantive interpretive anchoring that Section 33 invocation cannot operationally remove.

The substantive constitutional resilience strategy operates across seven substantive layers that compound with one another to produce substantive operational resilience for the legislation against the substantive amendment-and-removal pathways the substantive provincial legislative environment makes operationally available. The substantive design philosophy is honest about constitutional reality: no provincial legislation can operate within constitutional immunity from Section 33 invocation within the existing constitutional framework. The substantive constitutional resilience strategy operates against the operational reality through substantive anchoring across multiple constitutional and operational layers.

The substantive content of Section 3.10 establishes that the *Alberta Accessibility and Inclusion Act* is designed to be substantively constitutionally resilient. The substantive design integrates the documented substantive Alberta Section 33 context with the substantive constitutional architecture available to the

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legislation, producing substantive operational resilience that operates compoundingly across seven substantive layers. The substantive operational implication is that the substantive case the blueprint develops in the legislative-blueprint context is operationalized through substantive constitutional-and-operational design that operates against the substantive operational pathways through which the substantive provincial-government legislative practice could weaken or remove the substantive protections the legislation establishes.

The substantive blueprint is now constitutionally complete. The substantive specifications developed across Sections 3.1 through 3.10 operate within substantive constitutional anchoring at the substantive depth the documented substantive Alberta context requires.